

SHEEHAN, SCHIAVONI, JUTRAS & MAGLIOCCHETTI, LLP
ATTORNEYS AT LAW



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PAUL A. MAGLIOCCHETTI
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THOMAS C. TRETTER
WILLIAM D. CHASE

OF COUNSEL
KRISTIN M. YASENKA
JOSHUA S. ENGLAND, LLM

May 28, 2026

Timothy Jordan
City Council President
2 Summer Street
Haverhill, MA 01830

RE: Haverhill STEM, LLC
Proposed Ordinance: Marijuana Social Consumption Establishments
Request for a Continuance

MAY 29 AM 8:20
HAVCITYCLERK

Dear President Jordan,

Haverhill STEM, LLC respectfully requests that the hearing on this matter be continued until July 14, 2026. The reason for the request is that the Planning Board hearing has been continued until July 8th to allow time to resolve issues raised by the City Solicitor, and therefore additional time is required to get you the recommendation you requested.

Very Truly Yours,

Paul A. Magliocchetti

Paul A. Magliocchetti
pmagliocchetti@ssjmattorneys.com

Enclosures: Planning Director Letter

Cc: Client

Planning Director



Haverhill

Economic Development and Planning
Jacki Byerley, Planning Director
jbyerley@haverhillma.gov
Phone: 978-374-2330

May 28, 2026

MAY 28 AM 9:06
HAVCITYCLERK

City Council President Timothy Jordan
& City Councilors
City of Haverhill

RE: Proposed Social Consumption Ordinance

Dear Council President Jordan and Members of the City Council:

Please be advised that the Planning Board is unable to provide a recommendation on the proposed social consumption ordinance at this time.

The applicant requested a continuance of the public hearing related to the proposed ordinance. The Planning Board voted to grant the continuance and the matter has been rescheduled for further discussion and consideration at the Board's July 8, 2026 meeting.

As a result, the Planning Board has not completed its review or taken action to issue a recommendation to the City Council. Following the continued hearing and further deliberation, the Planning Board will forward its recommendation to the City Council for consideration.

Please feel free to contact the Planning Department with any questions.

Respectfully submitted,

Jacki Byerley, AICP
Planning Director

Cc: Mayor Barrett
Lisa Mead, City Solicitor
Kaitlin Wright, City Clerk

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OF COUNSEL
KRISTIN M. YASENKA
JOSHUA S. ENGLAND, LL.M.

VIA EMAIL

May 27, 2026

Planning Board
City of Haverhill
Haverhill City Hall
4 Summer Street
Haverhill, MA 01830

**RE: STEM Haverhill, LLC
Zoning Amendment
Request for continuance**

Dear Chairman and Members of the Planning Board:

The applicant, Haverhill STEM LLC, requests that the hearing on the above captioned matter be continued until your next scheduled meeting in June.

Very truly yours,

Paul A. Magliocchetti

Paul A. Magliocchetti

Cc: Planning Director
City Council
Client

SHEEHAN, SCHIAVONI, JUTRAS & MAGLIOCCHETTI, LLP
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WILLIAM D. CHASE

OF COUNSEL
KRISTIN M. YASENKA
JOSHUA S. ENGLAND, LL.M.

April 10, 2026

12.2

Timothy Jordan
City Council President
2 Summer Street
Haverhill, MA 01830

APR 10 AM 11:29
HAVCITYCLERK

RE: Haverhill STEM, LLC
Proposed Ordinance: Marijuana Social Consumption Establishments

Dear President Jordan,

Please be advised that I represent Haverhill Stem, LLC of 124 Washington Street, Haverhill, MA 01830 a Licensed Marijuana Establishment/Cannabis Dispensary, and Carambola, LLC, the owner of 124 Washington Street, Haverhill, MA.

On behalf of Haverhill STEM, LLC (Haverhill STEM), I am writing to formally request that the City Council initiate the process to amend the Haverhill City Ordinances to allow for the licensing and operation of Marijuana Social Consumption Establishments. As you are aware, on January 2, 2026, the Massachusetts Cannabis Control Commission officially promulgated new regulations authorizing on-site consumption at licensed venues. Under G.L. c. 94G, § 3(b), municipalities must affirmatively opt-in to this program via local ordinance or referendum to enable these new business models within their borders.

Since opening in 2020, Stem Haverhill has been a proud partner in the economic revitalization of downtown Haverhill. As a woman-owned Economic Empowerment business, we have prioritized community investment, generously contributing thousands of dollars annually to local nonprofits. We believe that social consumption represents the next critical evolution for our industry and our city.

By amending our local ordinances to permit these establishments, Haverhill can realize several key benefits:

- Economic Opportunity: Social consumption sites will create new jobs and generate additional local tax revenue for the City of Haverhill.

SHEEHAN, SCHIAVONI, JUTRAS & MAGLIOCCHETTI, LLP
ATTORNEYS AT LAW

- Public Safety: Regulated lounges provide a safe, controlled, and age-gated (21+) environment for consumption, moving it away from public spaces where it remains prohibited.
- Responsible Service: These licenses require rigorous safeguards, including mandatory Responsible Vendor Training for staff to recognize impairment and the implementation of comprehensive transportation strategies to prevent impaired driving.
- Tourism & Hospitality: As the first state in New England to allow social consumption, Massachusetts—and specifically Haverhill—stands to benefit from increased tourism.

Haverhill STEM is already preparing to invest in this future by transforming our historic property at 124 Washington Street into a state-of-the-art social consumption and education center. We are committed to working closely with the Mayor, the City Council, the Haverhill Police Department, and local stakeholders to ensure that any local ordinance includes the highest standards for security, ventilation, and public safety.

We respectfully request a hearing to discuss the attached draft ordinance and how we can work together to ensure the values and safety of our community are addressed while embracing this new economic reality.

Thank you for your time and continued dedication to the City of Haverhill.

Very Truly Yours,

Paul A. Magliocchetti

Paul A. Magliocchetti
pmagliocchetti@ssjmattoorneys.com

Enclosures: Draft Ordinance: Marijuana Social Consumption Establishments

Cc: Client

Draft Ordinance: Marijuana Social Consumption Establishments

Section 1: Purpose and Authority

The purpose of this ordinance is to allow for the operation of Social Consumption Establishments in the City of Haverhill in accordance with G.L. c. 94G, § 3(b) and CCC regulations. This ordinance aims to provide safe, regulated spaces for adult-use cannabis consumption while protecting public health and safety.

Section 2: Definitions

Social Consumption Establishment: Shall have the meaning set forth in 935 CMR 500.002, as amended from time to time, and includes the license types established thereunder.

Marijuana Establishment: Shall have the meaning set forth in 935 CMR 500.002, as amended from time to time.

Section 3: Opt-In and Licensing

Local Approval: No Social Consumption Establishment shall operate without a valid license from the CCC and a local Special Permit issued by the Haverhill City Council.

Host Community Agreement (HCA): Every operator must execute an HCA with the City of Haverhill prior to commencing operations. Where an operator already holds a valid HCA with the City for a licensed Marijuana Establishment, no new HCA shall be required and the operator shall instead obtain a simple amendment to the existing HCA to reflect the addition of the Social Consumption Establishment license.

Equity Exclusivity: The City of Haverhill shall recognize and enforce the exclusivity period established under M.G.L. c. 94G and 935 CMR 500.000, as amended from time to time, during which Social Consumption Establishment licenses are reserved on an exclusive basis for Social Equity Program Participants, Economic Empowerment Priority Applicants, Microbusinesses, and Craft Marijuana Cooperatives. The City shall not accept, process, or approve any local application from a non-qualifying applicant during the period in which such applicants are excluded under state law and CCC regulation.

Section 4: Operational Requirements

Age Restriction: Entry is strictly limited to individuals 21 years of age or older.

Product Sourcing: Customers are prohibited from bringing their own cannabis products ("BYOC").

Alcohol and Tobacco: The sale or consumption of alcohol and tobacco is strictly prohibited within the licensed consumption area.

Hours of Operation: Pursuant to the authority granted to municipalities under 935 CMR 500.141, the City of Haverhill hereby expressly authorizes Social Consumption Establishments to sell marijuana products until 12:00 AM. Sales of marijuana products must cease at least 30 minutes before the establishment closes.

Food Service: Establishments may sell pre-packaged, shelf-stable food and may seek additional local permits for prepared food service.

Section 5: Health and Safety Standards

All Social Consumption Establishments shall comply with the health and safety requirements established under M.G.L. c. 94G and 935 CMR 500.141, as amended from time to time, including without limitation, requirements governing ventilation and smoke control, transportation assistance for impaired consumers, and dose education and overconsumption prevention. To the extent practicable, health and safety standards applicable to Social Consumption Establishments shall be governed by state law and CCC regulation, which the City of Haverhill recognizes as establishing a comprehensive regulatory framework for such establishments.

Section 6: Zoning and Location

Social Consumption Establishments are permitted by Special Permit in the WD-A Zoning District.

Establishments must be located a minimum of 500 feet from public and private schools serving grades K-12 at the time of application, unless otherwise waived by the City of Haverhill.

Existing Special Permit: Where an applicant holds an existing Special Permit for a licensed Marijuana Establishment and seeks a Supplemental On-site Consumption License for a consumption area located within the same building as that licensed Marijuana Establishment, no new Special Permit shall be required. In such circumstances, the applicant shall be required only to obtain an amendment to the existing Special Permit, which amendment shall be subject to an expedited administrative review by the Haverhill City Council. Such amendment shall not require a new public hearing unless the Council determines, in its discretion, that material changes to the scope or operation of the premises warrant one.

Section 7: Signage

All signage shall comply with the requirements established under M.G.L. c. 94G and 935 CMR 500.000, as amended from time to time. An establishment that posts signage templates required and approved by the CCC shall be deemed in full compliance with the signage requirements of this ordinance. No additional or supplemental signage shall be required of any operator who has posted the applicable CCC-approved templates.



Haverhill

City Clerk's Office, Room 118
Phone: 978-374-2312 Fax: 978-373-8490
cityclerk@haverhillma.gov

May 11, 2026

PUBLIC HEARING

City Council Chambers, City Hall, Room 202, 4 Summer St

Notice is hereby given that a hearing will be held for all parties interested, in a hybrid meeting (in person/virtual), on Tuesday June 2, 2026 at 7:00 PM on the request of Haverhill STEM LLC of 124 Washington Street to amend the City's Ordinances to allow for the licensing and operation of Marijuana Social Consumption Establishments. The draft ordinance includes purposes and authority, definitions, opt-in and licensing, operational requirements, health and safety standards, zoning and location and signage. Complete text of the proposed ordinance can be obtained in the City Clerk's office.

(Residents who are interested in commenting on this item can either (1) Attend in person (Council Chambers, Room 202) or (2) Attend remotely using the link provided on the public meeting calendar on the City's website.)

Advertise: May 14 and May 21, 2026
Haverhill Gazette

Kaitlin M. Wright, CMC
City Clerk

Kaitlin Wright

From: North of Boston <noreply@wave2adportal.com>
Sent: Monday, April 27, 2026 10:21 AM
To: CityClerk
Cc: cmacdonald@northofboston.com; Kaitlin Wright; Natalia Hernandez
Subject: Thank you for placing your order with us.

Warning! External Email. Exercise caution when opening attachments or clicking on any links.
THANK YOU for your notice submission!

This is your confirmation that your order has been submitted. Below are the details of your transaction. Please save this confirmation for your records.

Job Details

Order Number:
W0143840
Business Type:
All Other Public Notices
Notice Size:
Public Notices
Notice Estimate:
\$150.00
Referral Code:
STEM Social Consumption Ord.

Account Details

Haverhill Clerk
4 SUMMER ST STE 118
HAVERHILL, MA 01830
978-374-2312
cityclerk@cityofhaverhill.com
HAVERHILL CITY CLERK

Schedule for notice number W01438400

Thu May 14, 2026

Haverhill Gazette Public Notices
All Zones

Thu May 21, 2026

Haverhill Gazette Public Notices
All Zones

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City Council Chambers, City Hall,
Room 202, 4 Summer St

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Kaitlin M. Wright, CMC
City Clerk
HG - Publication Dates

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30 Green Street
Newburyport, MA 01950

Millis Office
730 Main Street, Suite 1F
Millis, MA 02054
Phone 508.376.8400

HAV CITY CLERK MAY26/26 10:55

ADVISORY OPINION

TO: TIMOTHY JORDAN, PRESIDENT, CITY COUNCIL

FR: LISA L. MEAD AND ELIZABETH LYDON, CITY SOLICITORS

CC: MELINDA BARRETT, MAYOR

RE: PROPOSED SOCIAL CONSUMPTION ORDINANCE

DA: MAY 25, 2026

Reference is made to the above captioned matter. In that connection, below is a legal opinion regarding the impacts of the social consumption ordinance proposed by Haverhill Stem LLC on the City's marijuana regulatory framework and in particular its existing Zoning Ordinances. For the reasons stated below, we do not recommend adoption of the proposed ordinance. I have attached the proposal for your convenience.

The proposed ordinance would allow for marijuana social consumption establishments that are licensed by the Cannabis Control Commission to operate in the WD-A Zoning District and allow existing permitted marijuana establishments to engage in social consumption without amending their existing permit.

First, the City's Zoning Ordinance under Section 9.7.8(7) and its Board of Health Regulation Prohibiting Smoking in Workplaces and Public Places which applies to non-tobacco products, prohibit public consumption of marijuana and social consumption establishments within the City's borders. The proposed ordinance does not consider these existing prohibitions or provide suggested amendments to accommodate the new use. Therefore, the proposed use cannot be implemented without removal of the existing prohibition.

Further, any proposed amendment to the City's Ordinances, and Zoning Ordinance in particular, should be compared against and incorporated into the existing Code of Ordinances, and any change to the allowed uses under Chapter 255 Zoning should be incorporated into that section. The City currently has an Overlay District for Marijuana Establishments under Section 9.7, Licensed Marijuana Establishment Overlay Zone. Since the proposal does not address the existing Zoning Ordinance, it would create redundancies and conflicting provisions within Chapter 255 if adopted. There has been no effort on the part of the proponent to recognize the existing Zoning Ordinance or integrate the proposal into the existing regulatory framework.

The ordinance is proposed as a separate standalone section, and it is unclear where in the Code of Ordinances it is intended to be inserted. The definitions proposed under the ordinance conflict with those definitions already found in Chapter 255. For example, social consumption establishment and marijuana establishment. The proposed location under Section 6 of the proposed ordinance does not reference the existing overlay district but another district entirely. The proposed location for the use not only conflicts with where marijuana establishments are currently allowed under Chapter 255, but that inconsistency could inadvertently prevent current operators of marijuana establishments from adding a

social consumption license to their existing permits. The proposed location also creates conflicts with the proposed language allowing social consumption to be added to existing establishments without a new special permit because the proposed ordinance does allow social consumption as a use in the existing Overlay District. This language also conflicts with Section 9.7.6 which specifically requires a Special Permit when adding another license to an existing establishment and would prevent City oversight of the location and design of social consumption establishments when those establishments are added by right.

The remainder of the proposed ordinance is redundant as a recitation of existing laws and regulations and should not be included in the City's ordinances as it would need to be updated every time the law changes.

In summary, adoption of the proposed ordinance would lead to redundancies and conflicts with the City's existing Ordinances and Board of Health Regulation and is not recommended.

Attachment A – Draft Ordinance

Draft Ordinance: Marijuana Social Consumption Establishments

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Kaitlin Wright

From: City Council
Sent: Tuesday, June 9, 2026 8:14 AM
To: Tim Jordan; Tim Jordan
Cc: Kaitlin Wright
Subject: FW: Time Machine Letter of Support for Stem Consumption

Hi!

sent to each councilor separately

Best regards,
Lori

Lori A. Robertson
Administrative Assistant
Haverhill City Council
4 Summer Street- Room #204
Haverhill, MA 01830
978-374-2328 phone
978-374-2329-fax
lrobertson@haverhillma.gov
citycouncil@haverhillma.gov

From: Amy Ferrandini <amy@thetimemachine.fun>
Sent: Monday, June 8, 2026 7:29 PM
To: Mayor <mayor@haverhillma.gov>
Subject: Time Machine Letter of Support for Stem Consumption

Warning! External Email. Exercise caution when opening attachments or clicking on any links.

I am writing today as a local business owner to express my support for Stem's application to open a cannabis consumption site in downtown Haverhill. As the owner of The Time Machine, a gift store located in the heart of our downtown district, I see firsthand the immense potential of our neighborhood—but also the critical challenges we face.

To be direct, my business economically suffers from a current lack of consistent foot traffic and tourism. While downtown Haverhill has great character, retail shops like mine rely heavily on vibrant, active streets to survive. Right now, there simply are not enough regional draws bringing new faces past our storefronts on a daily basis.

The addition of a cannabis consumption site at Stem is precisely the type of innovative catalyst we need to change this trajectory. It is not just a win for their business; it is a necessary lifeline for the economic vitality of the entire downtown community.

To sustain our local economy, Haverhill needs unique, modern attractions that draw visitors from both the local Merrimack Valley and the broader region. A professionally managed, compliant consumption site will make Haverhill a premier destination, attracting tourists who are looking for safe, legal, and social experiences.

Stem has already proven itself to be a responsible, community-oriented, professional, and compliant cannabis business in Haverhill. I have the utmost confidence that they will manage this consumption site with the exact same high standards of safety, regulatory compliance, and respect for neighboring businesses.

For downtown retail to survive and flourish in the modern economy, we must embrace forward-thinking concepts that drive real foot traffic. Stem's proposed consumption site does exactly that. I strongly urge the City to approve their application and help us unlock the next wave of tourism and economic growth for downtown Haverhill.

Thank you for your time, leadership, and continued dedication to supporting our local business owners.

Sincerely,

Amy Ferrandini

The Time Machine
41 Washington St.
Haverhill MA 01832
978-822-8463